

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **HUD Housing Counseling** — call 1-800-569-4287
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

□ these new court papers say the case is set for april 1st at 9am at halden county court, housing division — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-04-01
- **Basis:** Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.
- **Triggering event:** hearing on 2026-04-01
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. This is the eviction hearing date printed on your court papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer. If this hearing date has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014) — missing the hearing does not always end your options.

□ the notice stated the individual owes \$350.00. The \$350 includes \$300 back rent and a \$50 late fee. The individual has 14 days to pay the \$350 or move out. — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-03-17
- **Basis:** Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.

- **Triggering event:** notice posted on 2026-03-03
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

⚠️ marcus has asthma and hes been coughing so much worse since like december

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2025-12-01
- Estimated — confirm the exact date with the court or a lawyer.

⚠️ the individual called the city on february 20 to report the mold and no-heat thing and someone from the city actually came out february 25

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-02-25
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

△ back in january our HEAT went out for like 5 days, jan 18 to 23

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
 - **Triggering event:** incident on 2026-01-18
 - **Jurisdiction:** MN
 - Estimated — confirm the exact date with the court or a lawyer.
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Executive Summary

This report found 16 possible legal problems in the state. The strongest issues are:

1. Breach of Implied Warranty of Habitability (not keeping a rental home safe and livable).
2. Failure to Provide a Receipted Payment for Pet Fee (not giving a receipt for pet fees).
3. Possible Defense for Eviction (a reason to avoid being kicked out).

It's important to know that at least one deadline has already passed. Court papers say the case is set for April 1st at 9 AM at Halden County Court, Housing Division (computed 2026-04-01).

[Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.]

You should check this right away. Missing deadlines can end your case. Safety problems were found in this story. Please see the safety resources below. The report is 75% complete. There are 6 follow-up questions below that would make the assessment better.

Completeness Score: 75%

Triage & Routing Recommendations

Primary Practice Area: Landlord-Tenant / Housing

Primary Jurisdiction: General

Complexity: High

Urgency: Emergency

Ranked Recommendations

1. Landlord-Tenant / Housing (Score: 0.52)

Landlord-Tenant / Housing practice area (64% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	64%
Jurisdiction Match	64%
Complexity Score	20%

2. General Civil (Score: 0.43)

General Civil practice area (36% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	36%
Jurisdiction Match	64%
Complexity Score	20%

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Notification to Landlord' is not yet supported by any facts
 - **Claim:** Breach of Implied Warranty of Habitability
 - **Element:** Notification to Landlord
- [] **[IMPORTANT]** Element 'Documentation Requirement' is not yet supported by any facts
 - **Claim:** Failure to Provide a Receipted Payment for Pet Fee
 - **Element:** Documentation Requirement
- [] **[HELPFUL]** Element 'Notice and Opportunity to Resolve' is not yet supported by any facts
 - **Claim:** Potential Defense for Eviction
 - **Element:** Notice and Opportunity to Resolve
- [] **[HELPFUL]** Element 'Ongoing Issues' is not yet supported by any facts
 - **Claim:** Potential Defense for Eviction
 - **Element:** Ongoing Issues

Follow-up Steps

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: these new court papers say the case is set for april 1st at 9am at halden county court, housing division (estimated 2026-04-01; Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.).
WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. This is the eviction hearing date printed on your court papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline).

Estimated — confirm the exact date with the court or a lawyer. If this hearing date has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014) — missing the hearing does not always end your options.

- **Deadline:** 2026-04-01

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: the notice stated the individual owes \$350.00. The \$350 includes \$300 back rent and a \$50 late fee. The individual has 14 days to pay the \$350 or move out. (estimated 2026-03-17; Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.). WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

- **Deadline:** 2026-03-17

- [] **[URGENT]** You reported problems to the city (or an inspector cited your landlord) shortly before the eviction steps started. If a landlord moves to evict soon after a tenant reports code violations, the law may presume retaliation — in Minnesota, Minn. Stat. § 504B.285/§ 504B.441; other states have an equivalent. How soon after your report did the eviction notice arrive?

[Authority: Minn. Stat. § 504B.285, subd. 2; § 504B.441 (retaliation defense/penalties)]

- [] **[URGENT]** You mentioned holding back rent because the landlord is ignoring repairs. Withholding on your own can be used against you in an eviction — but there is a legal way to do it: in Minnesota you can deposit the rent with the court (rent escrow, Minn. Stat. § 504B.385) and ask the court to order repairs; other states have an equivalent. Have you asked the court about depositing your rent instead of just holding it back? [Authority: Minn. Stat. § 504B.385 (rent escrow); § 504B.425 (remedies); § 504B.161 (covenants of habitability)]
- [] **[URGENT]** You mentioned paying extra money (like a cash pet deposit) with no receipt. Deposits are regulated — in Minnesota the landlord must account for them, pay interest, and return them with an itemized statement (Minn. Stat. § 504B.178); other states have an equivalent. A cash payment with no receipt can still count. How much did you pay, when, and do you have any proof (texts, witnesses, bank withdrawal)? [Authority: Minn. Stat. § 504B.178 (security deposits: receipt, interest, return); § 504B.172]
- [] **[URGENT]** Your notice appears to give a vague reason (like a 'material lease violation' box with no specifics). A notice usually must state the specific grounds so you can respond — a vague or defective notice can be challenged. What exactly does the notice say, and does it list any specific violation, amount, or cure period? [Authority: State eviction-notice content requirements (e.g., Minn. Stat. § 504B.321; the notice must state the specific grounds)]
- [] **[IMPORTANT]** Potential claim 'Breach of Implied Warranty of Habitability by Home Seller' has not been explored with fact mappings
 - **Claim:** Breach of Implied Warranty of Habitability by Home Seller

- [] **[IMPORTANT]** Potential claim 'Breach of Warranty' has not been explored with fact mappings
 - **Claim:** Breach of Warranty
- [] **[IMPORTANT]** Potential claim 'Product Liability Claims' has not been explored with fact mappings
 - **Claim:** Product Liability Claims
- [] **[IMPORTANT]** Potential claim 'Contract & Quasi-Contract Claims' has not been explored with fact mappings
 - **Claim:** Contract & Quasi-Contract Claims
- [] **[IMPORTANT]** Potential claim 'Property & Premises Liability Claims' has not been explored with fact mappings
 - **Claim:** Property & Premises Liability Claims
- [] **[IMPORTANT]** Potential claim 'Negligence by Landlord' has not been explored with fact mappings
 - **Claim:** Negligence by Landlord
- [] **[IMPORTANT]** Potential claim 'Failure to Mitigate Damages' has not been explored with fact mappings
 - **Claim:** Failure to Mitigate Damages
- [] **[IMPORTANT]** Potential claim 'Failure to Return Security Deposit' has not been explored with fact mappings
 - **Claim:** Failure to Return Security Deposit
- [] **[IMPORTANT]** Potential claim 'Potential Fair Housing Violations' has not been explored with fact mappings
 - **Claim:** Potential Fair Housing Violations
- [] **[IMPORTANT]** Potential claim 'Landlord's Duty to Repair' has not been explored with fact mappings
 - **Claim:** Landlord's Duty to Repair

- [] **[IMPORTANT]** Potential claim 'Tenant's Right to Habitability with Children' has not been explored with fact mappings
 - **Claim:** Tenant's Right to Habitability with Children
- [] **[IMPORTANT]** Potential claim 'Failure to Provide Receipts' has not been explored with fact mappings
 - **Claim:** Failure to Provide Receipts
- [] **[IMPORTANT]** What is the deadline for notifying the landlord about the repair issues before withholding rent could be deemed ineffective?
 - **Claim:** Withholding Rent Due to Repair Issues
- [] **[IMPORTANT]** What is the time frame for disputing the lack of a receipt for the pet fee under the lease agreement?
 - **Claim:** Failure to Provide a Receipted Payment for Pet Fee
- [] **[IMPORTANT]** What are the specific procedural steps that need to be followed to assert defenses against eviction in this situation?
 - **Claim:** Potential Defense for Eviction